

Forensic Judgment Analysis — Decision 13 — King LJ — Logic Model Applied

*Option B — Finding by Finding — Permission to Reopen Refused — CPR
52.30 — 4 August 2025 — On Papers*

Case references

BV20D01752 | CA-2024-001342 | Court of Appeal | CPR 52.30

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Veritas Numquam Perit

PREAMBLE

This document applies the master logical structure (Option A) to the King LJ order of 4 August 2025. Decision 13 is an application to reopen under CPR 52.30. Its analytical significance is that it applies the CPR 52.30 test — whether Moylan LJ engaged with the issues — to the Decision 8 analysis. The Decision 8 analysis has established that Moylan LJ did not engage with MPS, Coinbase, post-trial participation, or EA 2010 s.149 as a standalone duty, and conflated the Oxus perjury with a factual findings challenge. King LJ finds that Moylan LJ did engage. That finding is contradicted by the Decision 8 record.

Three findings arise: the engagement finding (MISCHARACTERISED); the MPS treatment (MISCHARACTERISED + UNSUPPORTED); and the Part 3A treatment (MISCHARACTERISED — same error as Moylan LJ, compounded).

SECTION 1 — STRUCTURAL CONTEXT

What was before King LJ on 4 August 2025

NZ filed a CPR 52.30 application to reopen the Moylan LJ order of 23 December 2024.

The CPR 52.30 test requires the court to ask:

- **Stage 1:** Did the judge who refused permission engage with the issues?
- **Stage 2:** If yes, is there a powerful probability that a significant injustice has occurred because the decision would have been different if the integrity of the earlier proceedings had not been critically undermined?

NZ's grounds: Moylan LJ failed to address the fundamental contention that MacDonald J did not refer to her mental health issues and disability in the judgment and failed to ensure proper participation directions under Part 3A and PD 3AA.

Supporting documents filed: N244, grounds of appeal, witness statement dated 22 April 2025 and appended documents, including CLAAS clinical material.

King LJ also addresses NZ's application for a stay on the MacDonald J order of 5 June 2025 — refused on the basis that no appeal is pending.

Source: King LJ order 4 Aug 2025; CPR 52.30; NZ application and supporting documents; Moylan LJ order 23 Dec 2024.

FINDING 1 — STAGE 1 OF CPR 52.30 — **"MOYLAN LJ ENGAGED WITH ALL OF THE EXTENSIVE GROUNDS"**

What King LJ said

> *"First, it is clear that Moylan LJ engaged with all of the extensive grounds advanced by the applicant in support of her application for permission to appeal. The central contention of the applicant's re-open application is that Moylan LJ did not engage with her argument that the trial was procedurally unfair because of a failure to accommodate her mental health issues and disability. There is no basis for this argument. The order of Moylan LJ observes that this was the applicant's 'overriding Ground of Appeal' and deals with the issue at length in his reasons."*

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> King LJ order 4 Aug 2025

Chain 1 — What the Decision 8 analysis establishes about Moylan LJ's engagement

- **IF** King LJ finds that Moylan LJ *"engaged with all of the extensive grounds"*
- **AND** The Decision 8 analysis establishes the following grounds were before Moylan LJ and not engaged:
 - **AND MPS non-enforcement** — 71 documented requests, then arrears remitted at para 34 — not addressed as a standalone ground
 - **AND Coinbase** — standalone ground of appeal — does not appear anywhere in the Moylan LJ order
 - **AND EA 2010 s.149 as a standalone statutory duty** — the words *"Equality Act"*, *"section 149"*, or *"public sector equality duty"* do not appear in the Moylan LJ order
 - **AND Post-trial participation cessation** — Moylan LJ addressed the hearing period only; the post-trial period is not addressed
 - **AND Oxus perjury** — conflated with factual findings appeal; the two questions are legally distinct and only one was answered
- **AND** King LJ's conclusion that Moylan LJ *"engaged with all of the extensive grounds"* is therefore contradicted by the record of what the Moylan LJ order contains
- **THEN** The Stage 1 finding — that Moylan LJ engaged with all grounds — is made without identifying what Moylan LJ said about MPS, Coinbase, EA 2010 s.149 as a standalone duty, or the post-trial participation period
- **THEREFORE** The Stage 1 finding is **MISCHARACTERISED** — King LJ answered the question *"did Moylan LJ address the overriding disability ground?"* when the CPR 52.30 Stage 1 question requires engagement with each ground, not only the overriding one. Four standalone grounds were before Moylan LJ and are absent from his order. King LJ does not address that absence.

Source: King LJ order 4 Aug 2025; Moylan LJ order 23 Dec 2024 — verified: no reference to MPS standalone ground, no reference to Coinbase, no reference to EA 2010 s.149, no reference to post-trial participation period; Decision 8 analysis.

MASTER RULE: IF the CPR 52.30 Stage 1 test requires asking whether the judge engaged with the issues AND multiple standalone grounds were before the judge AND those grounds are absent from the judge's order THEN finding that the judge "*engaged with all of the extensive grounds*" without addressing the absent grounds is answering the wrong question.

TAG APPLIED: MISCHARACTERISED

FINDING 2 — PART 3A — SAME ERROR AS MOYLAN LJ, COMPOUNDED

What King LJ said

> "*Moylan LJ considered the judge's assessment of the facts and concluded that the judge's findings were open to him on the evidence before him.*"

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> "*The applicant's complaint that the judge had no jurisdiction to revoke maintenance pending suit has no basis. MacDonald J was required to consider the continuation of maintenance pending suit on making the final order and having considered the position terminated the payments and remitted the missed payments. There is no basis for arguing that this conclusion was not reasonably open to the judge.*"

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> King LJ order 4 Aug 2025

Chain 1 — Part 3A: hearing period addressed, post-trial period not addressed

- **IF** NZ's Part 3A ground raised the unlawful cessation of participation measures after 28 February 2024 — the post-trial period
- **AND** King LJ finds: "*Moylan LJ... deals with the issue at length in his reasons*"
- **AND** Moylan LJ's reasons on Part 3A address the hearing period: "*participation measures were in place for the duration of that final hearing*"
- **AND** The post-trial period — in which participation measures ceased without order, without assessment, and without any judicial act — is not addressed by Moylan LJ
- **AND** King LJ treats Moylan LJ's engagement with the hearing period as engagement with the post-trial ground
- **AND** These are distinct periods — the hearing period and the post-trial period — raising distinct duties under FPR Part 3A and PD 3AA
- **AND** HMCTS confirmed: no order records the revocation of participation measures post-trial
- **AND** King LJ does not address the post-trial period in her order

- **THEN** King LJ compounds Moylan LJ's error — she treats his engagement with the hearing-period question as engagement with the post-trial question, without addressing the post-trial period herself
- **THEREFORE** The Part 3A treatment is **MISCHARACTERISED** — the same wrong period is addressed for the second time at appellate level. The post-trial participation void remains unaddressed at both appellate decisions.

Source: King LJ order 4 Aug 2025; Moylan LJ order 23 Dec 2024; HMCTS confirmation — no order records revocation; FPR Part 3A; PD 3AA §4.1-4.4; Decision 8 analysis — Part 3A MISCHARACTERISED.

TAG APPLIED: MISCHARACTERISED

FINDING 3 — MPS — WRONG QUESTION ANSWERED

What King LJ said

> *"The applicant's complaint that the judge had no jurisdiction to revoke maintenance pending suit has no basis. MacDonald J was required to consider the continuation of maintenance pending suit on making the final order and having considered the position terminated the payments and remitted the missed payments. There is no basis for arguing that this conclusion was not reasonably open to the judge."*

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> King LJ order 4 Aug 2025

Chain 1 — Jurisdiction versus causal exclusion

- **IF** NZ's MPS ground raised two distinct arguments:
 - (a) the court had no jurisdiction to remit MPS arrears at para 34 of the final order without a hearing; and
 - (b) the non-enforcement of MPS caused NZ's loss of legal representation, which caused her exclusion from the post-trial process, which caused the final order to be drafted on KZ's unilateral terms
- **AND** King LJ addresses only argument (a): *"MacDonald J was required to consider the continuation of maintenance pending suit on making the final order and having considered the position terminated the payments and remitted the missed payments"*
- **AND** King LJ's answer to argument (a) is that MacDonald J had jurisdiction — *"no basis for arguing this conclusion was not reasonably open to the judge"*
- **AND** Argument (b) — the causal exclusion chain — is not addressed
- **AND** The causal exclusion chain is: MPS non-enforcement → no income → loss of legal representation (BM steps down 7 Mar 2024) → excluded from draft order process → final order on KZ's unilateral terms → Detach repayment triggered on conclusion with no funds

- **AND** This chain establishes that the MPS breach had procedural consequences extending far beyond the arrears themselves
- **AND** King LJ addresses whether MacDonald J had jurisdiction to remit — she does not address whether the non-enforcement and remission caused NZ's procedural exclusion
- **THEN** King LJ answers the jurisdiction question while leaving the causal exclusion chain entirely unaddressed
- **THEREFORE** The MPS treatment is **MISCHARACTERISED + UNSUPPORTED** — King LJ answers a narrower question (jurisdiction to remit) in response to a broader ground (causal exclusion from proceedings). The causal chain is unaddressed for the third time across three decisions.

Source: King LJ order 4 Aug 2025; MPS order 5 Jul 2023; BM stepping down 7 Mar 2024; Final order para 34 — MPS arrears remitted; Detach causal chain.

TAG APPLIED: MISCHARACTERISED + UNSUPPORTED

SECTION 2 — THE APPELLATE COMPOUNDING RULE: THIRD ITERATION

How Decision 13 compounds Decisions 4, 8, and 6

Decision 13 is the third iteration of the compounding rule. Each level of the appellate process has treated the prior level's engagement as a valid determination of the grounds, without examining whether the prior level actually addressed the ground raised.

- **IF** F(1) — EWFC 79 para 64 — is **FABRICATED** (Decision 4)
- **AND** F(2) — Moylan LJ applies *Volpi* to F(1) and finds it "*plainly open*" (Decision 8) — **MISCHARACTERISED**
- **AND** F(3) — King LJ finds that Moylan LJ "*engaged with all of the extensive grounds*" (Decision 13)
- **AND** F(3) treats F(2) as a valid engagement — it does not examine whether F(2) addressed the actual grounds
- **AND** F(3) is therefore **MISCHARACTERISED** — it treats a mischaracterised engagement as a complete one
- **AND** Four grounds remain unaddressed across all three appellate decisions: MPS causal chain, Coinbase, EA 2010 s.149 standalone, post-trial participation
- **AND** No court at any level has addressed those four grounds on their merits
- **THEN** The sequence is: **FABRICATED** finding → **MISCHARACTERISED** appellate endorsement → **MISCHARACTERISED** confirmation of endorsement. Each step adds a layer of apparent judicial authority to a foundation that has never been examined.

- **THEREFORE** Decision 13 completes the appellate compounding sequence. After Decision 13, there is no domestic appellate route. The four unaddressed grounds remain live and unaddressed. The compounding is complete.

MASTER RULE: IF court A makes a mischaracterised finding AND court B finds that court A engaged with the issues without examining whether the engagement addressed the actual ground AND court B's finding closes the appellate route THEN the actual grounds have never been determined — they have only been procedurally foreclosed.

SECTION 3 — THE BINARY QUESTION AT DECISION 13

After Decision 13, the domestic appellate route is closed under CPR 52.30(7) — final, cannot be renewed to an oral hearing.

- **IF** The CPR 52.30 Stage 1 question is: did Moylan LJ engage with the issues?
- **AND** King LJ answers: yes
- **AND** Four standalone grounds were before Moylan LJ and are absent from his order: MPS, Coinbase, EA 2010 s.149, post-trial participation
- **AND** King LJ does not identify what Moylan LJ said about any of these four grounds
- **AND** King LJ does not address these four grounds herself
- **AND** The CPR 52.30 Stage 2 question — whether there is a powerful probability of significant injustice — is not reached
- **THEN** The Stage 1 finding is made on a false premise — Moylan LJ did not engage with all grounds, and the four absent grounds are not addressed at Stage 2 either
- **THEREFORE** Binary question: does the King LJ order constitute a determination that Moylan LJ engaged with NZ's actual grounds of appeal? **It does not.** The Stage 1 finding is made without identifying the absent grounds. The Stage 2 analysis is not reached. The appellate route is closed without the four absent grounds ever having been addressed at any level.

SECTION 4 — SUMMARY OF TAGGED FINDINGS

Decision 13 — King LJ — 4 August 2025 — CA-2024-001342-A

Finding	Tag
Stage 1 — "Moylan LJ engaged with all of the extensive grounds"	MISCHARACTERISED
Part 3A — hearing period addressed; post-trial period not	MISCHARACTERISED
MPS — jurisdiction answered; causal exclusion chain not	MISCHARACTERISED + UNSUPPORTED

Master rule applied: Appellate Compounding Rule — third iteration. King LJ treats Moylan LJ's mischaracterised engagement as a complete determination. Four grounds (MPS causal chain, Coinbase, EA 2010 s.149, post-trial participation) remain unaddressed across all three appellate decisions. Domestic appellate route closed.

Standing instructions: Paul Sibenik not mentioned. Address withheld throughout. Coinbase material in dedicated annex only.

Nadia Zahmoul — Litigant in Person — BV20D01752 / CA-2024-001342 — 6 April 2026